



CHAPTER ciii.

An Act to confirm certain Pilotage Orders made by the Board of Trade under the Pilotage Act 1913 relating to the Pilotage Districts of Liverpool and Manchester.
[4th August 1920.]

WHEREAS the Board of Trade have made the Pilotage Orders set forth in the schedule hereto under the provisions of the Pilotage Act 1913 but the same do not take effect unless and until confirmed by Parliament:

A.D. 1920.

2 & 3 Geo. 5
c. 31.

And whereas it is expedient that the said Pilotage Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Pilotage Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Confirmation
of Orders in
schedule.

2. This Act may be cited as the Pilotage Orders Confirmation (No. 1) Act 1920.

Short title.

SCHEDULE OF ORDERS.

1. LIVERPOOL.
2. MANCHESTER.

A.D. 1920.

SCHEDULE.

Liverpool.

LIVERPOOL PILOTAGE ORDER.

I.—PILOTAGE DISTRICT AND PILOTAGE AUTHORITY.

Limits of
District.

1. The limits of the Liverpool Pilotage District (hereinafter called "the Pilotage District") shall be as follows:—

The River Mersey as high as—

a line drawn from Speke Perch on the Eastern or Lancashire side of the river (about a mile and half above the entrance to Garston Docks) to the outer sill of the river entrance to the Eastham Locks leading to the Manchester Ship Canal on the western or Cheshire side of the river

and all the sea and channels leading thereto or therefrom within the area defined by the following imaginary lines (viz.):—

(a) an imaginary straight line drawn from a point on the north coast of Anglesea through Middle Mouse Island to the Calf of Man;

(b) thence all along the south and east and north-east coasts of the Isle of Man to the Point of Ayre; and

(c) from that point an imaginary straight line to St. Bees Head in the County of Cumberland

but nothing in this section shall extend to authorise a pilot for the Pilotage District to claim the right to pilot a vessel inward bound to or outward bound from any port within the Pilotage District other than the Port of Liverpool or any port situate on the River Mersey or its tributaries.

Pilotage
Authority.

2. The Pilotage Authority for the Pilotage District shall be the Mersey Docks and Harbour Board (hereinafter referred to as "the Authority") as constituted by the Mersey Docks and Harbour Act 1857 and amending Acts.

Compulsory
pilotage
inwards.

3.—(i) Pilotage for a vessel inward bound for the Port of Liverpool or for any port situate on the River Mersey or its tributaries shall be compulsory as soon as the vessel comes within the limits of the Pilotage District as hereinbefore defined and shall continue to be compulsory until the vessel has been brought to the outer sill of the river entrance of a dock or lock within or leading into the port.

(ii) The duties of a pilot in charge of any vessel inward bound shall extend to and include the taking her to and from and attending her at any stage anchorage or mooring in the River Mersey to the northward of an imaginary straight line drawn from the Dingle Point on the Lancashire shore of the Mersey to the New Ferry Slip on the Cheshire shore to which she may go for the purpose of discharging

any passengers crew animals or cargo or while waiting for tide or weather or otherwise for any purpose incidental to the voyage before entering any wet dock and the obligation of the master to employ a pilot when inward bound shall extend to and include an obligation to employ a pilot to perform the duties above mentioned.

A.D. 1920.

Liverpool.

4.—(i) Pilotage for a vessel outward bound from the Port of Liverpool or from any port situate on the River Mersey or its tributaries shall be compulsory as soon as the vessel has been brought to the outer sill of the river entrance of a dock or lock within or leading into the port and shall continue to be compulsory as far as but not seaward of the following imaginary lines (viz.):—

Compulsory
pilotage
outwards.

An imaginary straight line drawn from the Point of Air in the County of Flint to the Bar Lightship and thence another straight line to the point of junction with the seaward end of a third straight line four and a half nautical miles in length drawn on a true bearing of north-north-west from the inner north-west sea mark on the beach at Formby Point in the County of Lancaster;

and a vessel shall be deemed to be navigating for the purpose of leaving the port until she has passed seaward of one or other of the said imaginary lines as the case may be and no further.

(ii) Where a vessel outward bound from the Port of Liverpool calls at any stage in the River Mersey to the northward of the imaginary straight line drawn from Dingle Point on the Lancashire shore of the Mersey to the New Ferry Slip on the Cheshire shore or anchors or moors in the river to the northward of such line for the purpose of taking on board any passengers crew animals cargo coal water or stores or while waiting for tide or weather or otherwise for any purpose incidental to the voyage the obligation of the master to employ a pilot for the outward voyage shall attach from the time when the vessel first proceeds to any such anchorage or mooring and shall continue while she is lying thereat and the duties of the pilot shall extend to and include the taking her to and from and attending her at every such stage anchorage or mooring.

5. When a vessel is neither inward nor outward bound to or from the River Mersey the master shall be obliged to employ a pilot—

Compulsory
pilotage in
the Mersey.

(a) for her navigation or movement;

(b) to attend her while lying at any anchorage or mooring

anywhere in the River Mersey to the northward of the imaginary straight line drawn from Dingle Point as aforesaid and the duties of a pilot shall extend to and include the taking charge of such vessel to navigate or move her and to attend her while lying at any anchorage or mooring as aforesaid. Provided that this section shall not apply to any tug ferry boat tender flat barge hulk or other like vessel moored permanently or whilst employed exclusively within the limits of the River Mersey.:

[Ch. ciii.] *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]
(No. 1) Act, 1920.

A.D. 1920.

Liverpool.

Provided further that this section shall not apply to any vessel when passing to or from any place lying to the northward of the said imaginary line from or to—

- (i) Garston Weston Point or Ellesmere Port;
- (ii) Any of the Manchester Ship Canal Company's docks at Runcorn;
- (iii) Any dock quay or wharf lying to the southward of the said imaginary line and being within the jurisdiction of the Upper Mersey Commissioners.

Pilotage
Committee.

6.—(1) There shall be constituted in accordance with the First Schedule to this Order a Pilotage Committee (hereinafter referred to as "the Committee") of the Authority consisting of members appointed by the Authority and of representatives of pilots appointed respectively as follows:—

- (a) Ten persons appointed by the Authority of whom eight shall be appointed from among their own members not less than four being shipowners or directors or managers of shipping companies and two shall be persons familiar with the duties and qualifications of pilots and not members of the Authority;
- (b) Four pilots' representatives from among the six elected in the manner hereinafter provided.

(2) The members of the Committee shall be appointed respectively at the times and in the manner in the First Schedule hereto provided.

(3) The persons who are at the commencement of this Order members of the existing Pilotage Committee of the Mersey Docks and Harbour Board shall until the Committee are constituted under the provisions of this Order be the Committee as though they had been appointed thereunder.

Powers of
Committee.

7. The Authority may delegate to the Committee with or without such conditions as they think fit any of their pilotage powers and duties. The decisions of the Committee on questions of discipline which may be so delegated and as regards other questions so delegated the acts and proceedings of the Committee to the extent to which the Authority so directs shall not require confirmation by the Authority but the Committee shall report their proceedings to the Authority.

Proceedings
of Com-
mittee.

8.—(1) The Committee shall appoint one of the members appointed by the authority as the Chairman of the Committee. The Chairman if present shall preside at every meeting of the Committee. If the Chairman is absent at any meeting such other member as the members then present choose shall preside.

(2) Every question at a meeting of the Committee shall be decided by a majority of the votes of the members of the Committee present.

[10 & 11 GEO. 5.] *Pilotage Orders Confirmation* [Ch. ciii.]
(No. 1) Act, 1920.

and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote. A.D. 1920.
Liverpool.

(3) The quorum of the Committee shall be five.

(4) No member of the Committee shall take part in any proceedings of the Committee relating to any question affecting himself personally.

(5) Subject to the provisions of this Order the Committee may regulate their own procedure.

(6) No act or proceeding of the Committee shall be invalid on account of any vacancy in their body or on account of the appointment of any member having been defective.

II.—PILOT BOATS.

9. The Authority may (from time to time) build purchase or hire and employ in the pilotage service as many boats or vessels (of whatsoever kind and howsoever propelled) as shall in their opinion be required for that service and the Authority may in their discretion at any time alter sell or exchange any boat or vessel belonging to them. *Vessels for pilotage service.*

10.—(1) The Authority may employ any of the boats and vessels which may have been acquired by them for or appropriated by them to the purposes of the pilotage service of the Pilotage District in any such manner for and in connexion with that service as they may from time to time in their discretion think proper. They shall have full discretion and power in the management working victualling of the officers and crew repairing maintenance and alteration of all such boats and vessels and their punts sails machinery stores tackle and gear of all descriptions and may incur all expenses that may in their judgment be needful for those purposes and may also if they think fit insure all or any of such boats or vessels and it shall be lawful for the Authority for all or any of the purposes aforesaid to engage and dismiss such officers seamen workmen servants and others on such terms as to salary wages or otherwise as they shall from time to time think proper. *Control and working of pilot boats.*

(2) The powers of the Authority as owners of pilot boats shall be deemed to be part of the ordinary pilotage business of the Authority and shall as such be transacted through the Committee subject to the control of the Authority.

11. It shall not be lawful for any pilot to use as a pilot boat or for pilotage purposes any boat or vessel except a boat or vessel belonging to or hired by the Authority and assigned and employed by them for the time being to and for the pilotage service and every pilot who shall use any other boat or vessel as a pilot boat or for *No boats to be used as pilot boats except those of the Authority.*

[Ch. ciii.] *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]
(No. 1) Act, 1920.

A.D. 1920. pilotage purposes shall be liable to a penalty of three pounds three shillings for every day or portion of a day on which he shall so use any such boat or vessel and shall also be liable to have his licence suspended or forfeited by the Authority as they in their discretion may think fit Any such penalty as aforesaid may be recovered and enforced in the manner provided by section 326 of the Mersey Dock Acts Consolidation Act 1858.

Liverpool.

Pilot boat
rate.

12.—(1) A rate to be called "the pilot boat rate" shall be paid to the Authority in respect of every vessel which may be liable to pay pilotage dues Such rate shall be in addition to the pilotage dues but shall not exceed 38 per cent. thereof.

(2) The Authority may from time to time as they think proper within the limit aforesaid vary the pilot boat rate.

(3) The pilot boat rate shall be payable to the Authority by the owners and master of every vessel liable to pilotage dues as aforesaid and by every person taking upon himself the charge agency or consignment of such vessel at the time and in the manner prescribed by the Mersey Dock Acts Consolidation Act 1858 for the payment of tonnage rates and shall be recoverable at the option of the Authority in any of the following ways:—

(a) In any court of competent jurisdiction as if the rate were a simple contract debt and not a debt or demand created by statute; or

(b) In the manner prescribed by the Mersey Dock Acts Consolidation Act 1858 for the recovery of dock tonnage rates; or

(c) In the manner prescribed by the Pilotage Act 1913 for the recovery of pilotage dues.

(4) Section 253 of the Mersey Dock Acts Consolidation Act 1858 shall be deemed to extend to and include the pilot boat rate.

Borrowing
powers.

13. The Authority may borrow at interest on the security of the rates for the time being belonging to them any sum or sums which may be required for the purposes of this Part of this Order or for replacing moneys borrowed under the Mersey Docks Act 1881 All moneys borrowed by the Authority under the authority of that Act or of this Order shall be applied by them to the purposes thereof and not otherwise.

Pilot boat
account.

14. There shall be carried to the credit of the pilot boat account all moneys borrowed or received by the Authority under or by virtue of the Mersey Docks Act 1881 or of this Order including all moneys arising from any sales or insurance of any boats or vessels acquired by them all moneys received by the Authority as owners of such boats

or vessels collected by them as pilot boat rates and all moneys which may be received by the Authority as owners of such boats or vessels for compensation for any damage done to or for the loss of such boats or any of them including demurrage if any and there shall be carried to the debit of the said pilot boat account all moneys that shall be paid or expended by the Authority in acquiring hiring maintaining insuring repairing altering managing or working the boats and vessels to be employed by the Authority in the said pilotage service and otherwise in effecting the purposes of the Pilotage Act 1913 or of this Part of this Order and all interest payable upon moneys borrowed for those purposes either under this Order or under the Mersey Docks Act 1881.

A.D. 1920.

Liverpool.

15. The Authority may apply any balance from time to time standing to the credit of the said pilot boat account to any of the purposes of this Part of this Order or in the repayment of any moneys borrowed for any of those purposes either under this Order or under the Mersey Docks Act 1881 and interest thereon or in satisfying all claims damages costs and expenses which may be incurred by the Authority or to which they may become liable in and incidental to the carrying out of the powers and provisions of this Part of this Order or in establishing or maintaining such a renewal fund as they may think requisite for the maintenance repair improvement alteration and replacement of the boats vessels and other property to be employed by the Authority in the said pilotage service and such application of moneys may be made by the Authority for all or any of the above purposes in any order with respect to priority which they shall deem expedient.

Application
of balance of
pilot boat
account.

16. If any residue or surplus of such money shall remain in the hands of the Authority after such application as aforesaid and after they have from time to time made reasonable provision in aid of future expenditure for all or any of the purposes of this Part of this Order and for the establishment and maintenance of such renewal fund as aforesaid the Authority shall in or as soon as may be after the month of August in every year apply such residue or surplus in or towards the repayment of any principal moneys which shall have been borrowed by the Authority under the powers of the Mersey Docks Act 1881 and of this Part of this Order until all such principal moneys shall have been repaid and when all such principal moneys shall have been repaid then and in such case the Authority shall and they are hereby required to reduce the amount of the pilot boat rates to be thereafter paid to them so far as the same can be done consistently with leaving sufficient provision for the future expenditure by the Authority authorised by this Part of this Order and for the maintenance of a renewal fund as above mentioned Provided always that

Application
of surplus
from pilot
boat account.

A.D. 1920. the Authority may from time to time again raise the said rate subject
Liverpool. to the provisions hereinbefore set forth.

III.—ACCOUNTS.

Pilotage ex-
penditure to be
defrayed out
of pilotage
receipts.

17. All expenditure for the pilotage service shall be defrayed out of the pilotage receipts and no portion of the pilotage receipts shall be applied otherwise than in connexion with the pilotage service.

Separate
accounts to
be kept.

18. Separate accounts shall be kept by the Authority of all moneys received and expended by them in connexion with the pilotage service (that is to say):—

- (i) For the pilot fund of the Pilotage District;
- (ii) On account of the pilotage annuity fund;
- (iii) On account of the pilot boats.

Accounts to be
adjusted every
three months.

19. A settlement of the accounts of the pilot fund of the Pilotage District shall take place once in every three months.

IV.—PILOTAGE ANNUITY FUND.

Annuity
fund to be
continued.

20.—(1) The existing pilotage annuity fund (hereinafter referred to as “the annuity fund”) shall be continued and shall for the purposes of the Pilotage Act 1913 be deemed to be a pilots’ benefit fund. There shall be paid into the annuity fund the following sums:—

- (a) Any money required to be paid into the fund by section 21 of the Pilotage Act 1913 or by byelaw;
- (b) An amount equal to six per cent. of the gross amount of all pilotage dues earned by the licensed pilots of the Pilotage District;
- (c) An amount equal to three and a half per cent. of the total amount received by the Authority in any year in respect of pilot boat rates.

(2) The sums payable under paragraph (b) of subsection (1) shall in the case of any pilotage dues received by the collector of pilotage dues be paid into the annuity fund by him and in the case of any dues paid direct to a pilot be paid by the pilot in each year to the collector before he is entitled to have his licence renewed and be paid by the collector into the annuity fund.

(3) The sums payable under paragraph (c) of subsection (1) shall be paid into the annuity fund in the month of August in each year in respect of the amount received by the Authority for pilot boat rates during the preceding twelve months.

21. The annuity fund shall be applied by the Authority as follows (that is to say):—

A.D. 1920.

Liverpool

In the first place in the payment of such pensions allowances and annuities as are payable at the date of the coming into operation of this Order; and

Annuities to pilots their widows and children.

In the second place in the payment of annuities or weekly or other allowances to pilots retiring from the service and to widows and children of deceased pilots of such amounts and subject to such conditions as to age length of service and other circumstances as may be provided for by byelaws.

22. The Authority may from time to time apply all or any portion of any moneys received by them for fines penalties or forfeitures incurred by pilots or otherwise in connexion with the pilotage service for the relief of distressed pilots their widows and children whose cases may not come within the provisions relating to the annuity fund and the surplus (if any) of such moneys beyond such reasonable sum as by the Authority shall be directed to be retained by their treasurer as a fund available for the grant by the Authority of such relief as aforesaid shall be added to the annuity fund.

Application of moneys received from fines.

23.—(a) The Chairman for the time being of the Authority (b) the chairman for the time being of the Committee (c) the superintendant for the time being or other officer of the Authority to be appointed by resolution and (d) a pilot to be elected by the pilots shall be the trustees of the annuity fund and all moneys forming part of that fund shall be invested in the names of the trustees.

Trustees of pilotage annuity fund.

The trustee to be elected by the pilots shall be elected for a term of five years by the licensed pilots in active service under such regulations as they think fit and as the Board of Trade approve.

24. Money applicable to the purposes of the annuity fund and not immediately required to be expended shall or may at the discretion of the trustees be invested in Mersey Dock or Trustee securities with power to vary such investments.

Investment of funds.

V.—EXTRAORDINARY SERVICES.

25. Every agreement if any for services rendered by a pilot to a vessel met with in distress in the Pilotage District shall be absolutely void and no claim whatsoever shall at any time or on any account be made or attempted to be made directly or indirectly by legal process or otherwise by any pilot for or in respect of any salvage services rendered to any vessel in the Pilotage District or to any of the appurtenances or to any portion of the cargo thereof by such pilot until the consent of the Committee to be given in writing under the hand of the secretary of the Authority shall have been obtained for such

Pilot not to claim for salvage services without consent of Committee.

[Ch. ciii.] *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]
(No. 1) Act, 1920.

A.D. 1920. pilot to make a claim for such salvage services Provided that such
Liverpool. consent of the Committee as aforesaid shall not unreasonably be
withheld The pilot shall produce to the Committee such statements
and evidence as they may require including if the pilot thinks fit the
opinion of one of the counsel usually practising in the Admiralty
Court which statements and evidence and opinion (if any) the Com-
mittee shall consider before coming to a decision.

Authority
not to claim
for salvage
services in
respect of
pilot boats.

26. No claim whatever shall at any time or on any account be
made or attempted to be made directly or indirectly by legal process
or otherwise by the Authority as owners of any pilot boat or by any
person acting in any capacity on board any such boat except a licensed
pilot with the consent of the Committee as aforesaid for or in respect
of any salvage services rendered to any vessel or to any of the
appurtenances or to any portion of the cargo thereof by any such
boat or person except so far as may be necessary for the recovery of
the value of any vessel or effects which may be lost or any actual
damage or injury which may be caused to such vessel or persons in
rendering or attempting to render any such salvage service including
demurrage for the loss of the service of such vessel consequent on
such damage or injury.

VI. — GENERAL.

Penalty on
person acting
without a
licence.

27. If any person shall pilot any vessel without having been first
duly licensed by the Authority to act as a pilot or after the expiration
of his licence and before the same shall have been renewed he shall
for every such offence be liable to a penalty of not exceeding fifty
pounds.

Classification
of pilots.

28. The Authority may from time to time by byelaw class the
pilots in such orders or degrees and under such restrictions or
regulations as may be therein provided more particularly for the
greater safety and preservation of vessels of a large draught of water.

Exemption
of persons
assisting
ships in
distress.

29. Nothing in this Order contained shall extend to prevent any
person from assisting any vessel in distress or to subject any person
so acting to any of the penalties of the Pilotage Act 1913 or of this
Order.

Repeal of
enactments.

30. The enactments set out in the Second Schedule to this Order
shall cease to have effect and shall for the purposes of section
fifty-nine of the Pilotage Act 1913 be deemed to be superseded.

Commence-
ment of
Order.

31. This Order shall come into operation one month after the day
when the Act confirming this Order is passed.

Short title.

32. This Order may be cited as the *Liverpool Pilotage Order*
1920.

SCHEDULES.

A.D. 1920.

Liverpool.

FIRST SCHEDULE.

With respect to the appointment of the members of the Committee the following provisions shall have effect (that is to say):—

1. The persons to be appointed by the Authority (except a person appointed to fill a casual vacancy) shall be appointed annually at the first meeting of the Authority held after the twentieth day of December in each year and shall remain in office until the following twentieth day of December and shall then go out of office but may be reappointed.

2. The pilots licensed for the Pilotage District (hereinafter referred to as "licensed pilots") shall in each year elect six persons (hereinafter referred to as "pilots' representatives") A pilots' representative shall be either a licensed pilot or a retired licensed pilot.

3. A meeting for the nomination of pilots' representatives shall take place in the month of October in each year at a time and place to be fixed by the Committee and advertised fourteen days at least before the day appointed for such meeting by a written or printed notice posted in a conspicuous place at the Pilot Station Liverpool.

4. With respect to the election of pilots' representatives the following provisions shall have effect (that is to say):—

(i) The senior pilot of the Port of Liverpool for the time being in active service or in the event of his absence or unwillingness to act the pilot in active service with the greatest length of service who shall be present and willing to act shall be the chairman of the meeting:

(ii) Every licensed pilot shall be entitled to attend the meeting and take part in the nomination of candidates:

(iii)—(a) Every candidate shall at the meeting be nominated and seconded by a licensed pilot;

(b) If the number of persons so nominated does not exceed the number of persons to be elected the chairman shall declare them to be duly elected and shall certify in writing accordingly:

[Ch. ciii.] *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]
(No. 1) Act, 1920.

A.D. 1920.

Liverpool.

- (iv) If the number of persons nominated exceeds the number to be elected the election shall be decided by the majority of votes taken at a poll:
- (v) In the event of a poll being necessary a licensed pilot present at the meeting and willing to act shall be appointed by show of hands to be the returning officer and not more than two persons may be appointed to attend as scrutineer or scrutineers on the counting of the votes:
- (vi) When a poll is to be taken the returning officer shall within one week from the date of the meeting send or cause to be sent by letter post a list of the persons nominated for election to the registered address of every licensed pilot in active service:
- (vii) Every licensed pilot voting in the election shall vote by making a mark opposite the name or names of the person or persons for whom he wishes to vote on the list of candidates and shall sign the list and deliver it or send it by post to the returning officer within fourteen days from the date on which the list was issued. Every licensed pilot shall be entitled to as many votes as there are persons to be elected but shall not give more than one vote for any one candidate:
- (viii) In the event of two or more candidates at any election having the same number of votes the tie shall be decided according to seniority of service:
- (ix) As soon as may be after the election the returning officer shall certify in writing to the secretary of the Authority the names of the persons elected and the number of votes recorded for each person and every person so certified to be elected shall be deemed duly elected.

5. The four representatives entitled to attend the Committee when able to do so shall be ascertained as follows:—

- (a) In the event of the six pilots' representatives being elected without a poll the four with the longest service shall be entitled to attend;
- (b) In the event of the representatives being elected after a poll the four representatives receiving the most votes shall be entitled to attend:

In the event of any one of the four persons under either (a) or (b) being unable to attend one of the other pilots' representatives may attend in his stead priority being given according (as the case may be)

to seniority or to the number of votes received by such persons at the election. The absence at the time fixed for the meeting of any person entitled to attend a meeting of the Committee shall be sufficient evidence of his inability to attend.

A D. 1920.

Liverpool.

6. The pilots' representatives (except a person elected to fill a casual vacancy) shall come into office on the twenty-first day of December next after their election and shall remain in office until the following twentieth day of December and shall then go out of office but may be re-elected.

7.—(a) In the event of any vacancy occurring among the members of the Committee (other than the pilots' representatives) otherwise than by effluxion of time the Authority may appoint a person to fill the vacancy and the person so appointed shall retain his office by virtue of such appointment so long only as the vacated member would have retained the same if such vacancy had not occurred.

(b) In the event of the number of pilots' representatives being reduced below four by death, resignation, or other cause a meeting for the nomination of persons to fill the vacancies shall as soon as may be take place in the manner hereinbefore prescribed and the election of persons to fill such vacancies shall be conducted in accordance with the provisions hereinbefore contained *mutatis mutandis*. Provided that the persons elected under this provision shall immediately come into office and shall as to their right of attending meetings of the Committee rank after the then existing representatives and shall retain office so long only as the persons replaced would have retained the same.

8. All costs charges and expenses of and incidental to the election of pilots' representatives under this schedule shall be paid by the Authority out of the pilotage receipts applicable to the general expenditure.

A.D. 1920.

Liverpool.

SECOND SCHEDULE.

ENACTMENTS SUPERSEDED.

Session and Chapter.	Short Title.	Extent of Repeal.
21 & 22 Vict. c. xcii.	The Mersey Dock Acts Consolidation Act 1858.	Sections 118 to 162 and 164 Section 163 in so far as it applies to pilots. Section 221 in so far as it relates to the power of the Authority to make byelaws for the regulation of pilots and of pilot boats and for the management regulation and distribution of the Pilotage Annuity Fund.
23 & 24 Vict. c. cl.	The Mersey Docks (Ferry Accommodation) Act 1860.	Sections 35 and 36.
27 & 28 Vict. c. ccxiii.	The Mersey Docks Act 1864	Section 7.
44 Vict. c. 49	Mersey Docks Act 1881	Sections 3 to 24.
52 & 53 Vict. c. cxl.	Mersey Docks and Harbour Board Act 1889.	Section 35.
56 Vict. c. 36	Pilotage Orders Confirmation Act 1893.	The Liverpool Pilotage Order 1893.
60 & 61 Vict. c. clxx.	Mersey Dock Act 1897	Section 16.
62 & 63 Vict. clxxii.	Mersey Docks (Pilotage &c.) Act 1899.	Sections 3 to 10 and schedule.

Manchester.

MANCHESTER PILOTAGE ORDER.

Pilotage District.

1. The limits of the Manchester Pilotage District (hereinafter called "the Pilotage District") shall be the Manchester Ship Canal (as constructed under the Manchester Ship Canal Act 1885) and the subsequent Acts relating to the said canal from its eastern termination at or near Woden Street footbridge in the city of Manchester to the outer sill of the river entrance at Eastham Locks.

Pilotage Authority.

2. The Pilotage Authority for the Pilotage District shall be the Manchester Ship Canal Company (hereinafter referred to as "the Authority").

Pilotage not compulsory.

3. Pilotage shall not be compulsory in the Pilotage District.

Pilotage Committee.

4.—(1) There shall be constituted a Pilotage Committee of the Authority (in this Order referred to as "the Committee") consisting of members appointed by the Authority and of representatives of

shipowners and pilots (hereinafter referred to as "shipowners' representatives" and "pilots' representatives" respectively) as follows:— A.D. 1920.
Manchester.

- (a) Such number of persons not exceeding five appointed by the Authority as the Authority think fit of whom at the time of appointment at least two shall be directors of the Manchester Ship Canal Company:
- (b) Two shipowners' representatives appointed by the Manchester Steamship Owners' Association:
- (c) Two pilots' representatives elected in manner hereinafter provided by the pilots licensed for the Pilotage District (hereinafter referred to as the "licensed pilots") from among persons who either are or have been licensed pilots for the Pilotage District.

(2) The members of the Committee shall be appointed and elected respectively at the time and in manner in the schedule hereto provided.

(3) Any persons who were on the first day of November 1919 members of the Pilotage Committee for the Pilotage District shall until the thirty-first day of October 1920 be the Committee as though they had been appointed or elected under this Order.

5. The Authority may delegate to the Committee any of their powers or duties under the Pilotage Act 1913. The decisions of the Committee on questions so delegated shall not require confirmation by the Authority but the Committee shall report their proceedings to the Authority. Powers of Pilotage Committee.

6.—(1) The chairman if present shall preside at every meeting of the Committee. If the chairman is absent at any meeting such other member as the members then present choose shall preside. Proceedings of Committee.

(2) Every question at a meeting of the Committee shall be decided by a majority of votes of the members of the Committee present and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.

(3) The quorum of the Committee shall be four present and qualified to take part in the proceedings unless the Authority otherwise direct.

(4) No member of the Committee shall take part in any proceedings of the Committee relating to any question affecting himself personally.

(5) Subject to the provisions of this Order the Committee may regulate their own procedure.

(6) No act or proceeding of the Committee shall be invalid on account of any vacancy in their body or on account of the appointment or election of any member having been defective.

A.D. 1920.

Manchester.

Period of
office.Retiring mem-
bers eligible for
re-appointment
or re-election.Separate
accounts to
be kept.

Repeal.

Date of com-
mencement.

Short title.

7. Members of the Committee shall hold office from the date of their appointment or election respectively until such time as their successors may be appointed or elected respectively.

8. Members of the Committee going out of office may be re-appointed or re-elected respectively.

9. Separate accounts shall be kept by the Authority of all moneys received and expended by them in connection with Pilotage service.

10. Section twenty-two of the Manchester Ship Canal Act 1894 shall cease to have effect and shall for the purposes of section 59 of the Pilotage Act 1913 be deemed to be superseded.

11. This Order shall come into force on the day when the Act confirming this Order is passed.

12. This Order may be cited as the Manchester Pilotage Order 1920.

SCHEDULE.

With respect to the appointment and election of the Committee the following provisions shall have effect (that is to say):—

1. The persons to be appointed by the Authority as members of the Committee and the shipowners' representatives respectively shall be appointed at the first meetings of the Authority and the Manchester Steamship Owners' Association respectively held after the commencement of this Order and in the month of October in every year thereafter.

2. For the purpose of electing pilots' representatives the secretary to the Committee shall on the first day of October 1920 and on the first day of October in every year thereafter send out by registered letter to all the pilots of the first and second class a circular announcing an election and enclosing a list of persons qualified under this Order to be pilots' representatives, a voting card and a stamped addressed envelope in which the card when filled in is to be returned to himself. At the expiration of twenty-one days from the issue of the said circular the said secretary shall check and count the voting cards returned to him and the two persons who have received the greatest number of votes and are otherwise qualified under this Order shall be the pilots' representatives for the ensuing year. The said secretary shall thereupon send out by registered letter to all the pilots of the first and second class a further circular announcing the result of the election and an election of substitute representatives for which latter purpose

a procedure shall be adopted similar to the procedure for the election of pilots' representatives Provided always that it shall be lawful for the Authority at any time with the consent of the Board of Trade to substitute a different procedure for the election of pilots' representatives or substitute representatives.

A.D. 1920.
Manchester.

3. A substitute representative shall be entitled to attend and vote at any meeting of the Committee in the place of any pilots' representative who may be unable to attend.

4. The members of the Committee shall come into office on the first day of November in the year in which they are appointed and elected respectively and shall remain in office until the following thirty-first day of October and shall then go out of office but they may be re-appointed or re-elected as the case may be.

5. In case there is a failure in any year to elect any pilots' representatives or substitute representatives the Board of Trade may appoint any duly qualified person to fill the vacancy and the person so appointed shall hold office as though he had been duly elected.

6.—(1) In case of any vacancy occurring in the members of the Committee appointed by the Authority or among the shipowners' representatives otherwise than by effluxion of time the Authority and the Manchester Steamship Owners' Association respectively may (subject in the case of the Authority to the provisions of subsection 1 (a) of section 4 of this Order) appoint a person to fill the vacancy.

(2) In case of any vacancy occurring among the pilots' representatives or substitute representatives otherwise than by effluxion of time the vacancy shall be filled in the same manner as is provided for the annual election of pilots' representatives or substitute representatives.

(3) A person appointed or elected under either of the two preceding subsections shall remain a member of the Committee or a pilots' substitute representative as the case may be so long only as the person for whom he is substituted would have remained a member or substitute respectively.

7. The costs charges and expenses of and preliminary and incidental to elections of pilots' representatives and substitute representatives shall be paid by the Authority out of the pilot fund or account of the Pilotage District.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B.E., M.V.O., the King's Printer of Acts of Parliament.

To be purchased through any Bookseller or directly from
H.M. STATIONERY OFFICE at the following addresses:
IMPERIAL HOUSE, KINGSWAY, LONDON, W.C. 2, and 28, ABINGDON STREET, LONDON, S.W. 1;
37, PETER STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;
23, FORTH STREET, EDINBURGH;
or from E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.

